

Komma Super Speciality Hosptial vs Union Of India on 10 July, 2025

Author: R. Raghunandan Rao

Bench: R. Raghunandan Rao

APHC010342192025

IN THE HIGH COURT OF ANDHRA PRADESH

AT AMARAVATI

WRIT PETITION NO: 17140 of 2025

Komma Super Speciality Hosptial and others

...Petitioners

Vs.

Union of India and others

...Respondents

Advocate for Petitioners:

Mr. T. V. P. Sai Vihari

Advocate for Respondents:

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CORAM : THE CHIEF JUSTICE DHIRAJ SINGH THAKUR
SRI JUSTICE R. RAGHUNANDAN RAO

DATE : 10th July, 2025.

PER DHIRAJ SINGH THAKUR, CJ (Oral) :

A complaint came to be filed before the District Consumer Disputes Redressal Commission, Kadapa District, alleging medical negligence by the petitioners herein. The said District Forum, by virtue of an order dated 12.01.2024, partly allowed the complaint and awarded an amount of Rs.4,08,921/- along with interest @ 6% per annum from the date of filing of the complaint till the date of realization as compensation in favour of the complainant - respondent No.5 herein.

2. An appeal was filed, belatedly, with a delay of 214 days, before the State Consumer Disputes Redressal Commission at Vijayawada, accompanied by an application for condonation of delay. The said application,

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however, came to be dismissed vide order 20.02.2025. The State Consumer Commission in its detailed order held that the affidavit filed in support of the application seeking condonation of delay was bereft of the basic ingredients of Section 5 of the Limitation Act. It also held that the petitioners had not shown any cause, much less sufficient cause to condone the abnormal delay of 214 days in preferring the appeal.

3. The petitioners then approached the National Consumer Disputes Redressal Commission at New Delhi, by way of a Revision Petition, which too came to be dismissed vide order dated 07.05.2025 and the order of the State Consumer Commission, dismissing the application for condonation of delay, upheld. It is against this order that the present writ petition has been filed.

4. The case of the petitioners is that they had demonstrated sufficient cause for the delay, yet the Revision Petition was dismissed mechanically.

5. The basis for seeking the condonation of delay was reflected in paragraph 3 of the application filed by the petitioner before the Appellate Authority, which is reproduced hereunder:

"3. Apropos, the Ld. DCDRC, Kadapa District, after hearing both the parties disposed the case on merits in favour of the Complainant in C.C.No.54 of 2017 vide order dated 12.01.2024, thereby directing us to pay a compensation to a tune of Rs. 4,08,921/- to the Complainant together with interest @ 6% p.a from the date of filling of the complainant i.e., from

30.06.2017 till the date of realisation, and to pay an amount of Rs. 10,000/- towards mental agony and to pay an amount of Rs. 10,000/- towards pain and suffering and to pay Rs. 5,000/-

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towards costs of the complainant within 45 days from the date of the receipt of the order passed by the Ld. DCDRC, Kadapa District, failing which the opposite parties are also liable to pay interest @ 6% p.a. Since our Counsel on record in CC.No.54/2017, having received the copy of the said Order on 20.01.2024, but, had misplaced the same and hence had not informed us about the receipt of the Order Copy from the Hon'ble DCDRC, Kadapa. Thereafter, on our constant demands, the Counsel for finally informed about the disposal of CC.No.54/2017 and issued the certified copy in the month 31 Aug 2024. Immediately, we approached an Advocate at Vijayawada for filing the said appeal. However, due to heavy rain and inundation near my Counsel's residence, he could not prepare the ibid ground of appeal in time. Hence, there is a delay of days in filing the said appeal before this Hon'ble Commission."

6. On a perusal of the contents of the application as reproduced hereinabove, it is clear that the appellants therein did not either by necessary implication or explicitly state that they were unaware of the passing of the order by District Consumer Forum. It is also clear that the petitioners had not at all reflected the date of actual knowledge of the disposal of the case by the District Consumer Forum and referred only to the date when the certified copy had been issued i.e. on 31.08.2024. As to when the counsel had applied for the certified copy of the order dated 12.01.2024, was also not reflected in the application. The averments thus made in the application were quite vague and general in nature.

7. It is in the backdrop of the aforementioned facts that the State Consumer Commission, while placing reliance upon the Apex Court judgments, among others, in the cases of Ram Lal and Ors. Vs. Rewa

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Coalfields Ltd.,¹ Anshul Aggarwal vs. New Okhla Industrial Development Authority² and R.B. Ramalingam vs. R.B. Bhuvaneswari³, did not find it a fit case, which would warrant the condonation of 214 days delay.

8. Having gone through the relevant facts of the present case, as also the law on the subject, in our opinion, the view expressed by the State Commission, which was upheld by the National Consumer Commission, cannot be interfered with, as the averments made in the application were vague, in the absence whereof, no sufficient cause can be seen to have been made, which would have warranted the condonation of delay.

9. Be that as it may, the writ petition is found to be without any merit and is accordingly dismissed.

No order as to costs. Pending miscellaneous applications, if any, in this petition, shall stand closed.

DHIRAJ SINGH THAKUR, CJ.

R. RAGHUNANDAN RAO, J.

SSN 1 AIR 1962 Supreme Court 361 2 2011 (14) SCC 578 3 2009 (2) Scale 108